

		Moreover, Plaintiffs’ contention others “may have succumbed” to the deception is merely speculative and the fact that other clients may have signed the BOR does not necessarily indicate they did so only because they were deceived. Finally, in the event Plaintiffs succeed on their claims, they would be entitled to legal damages as compensation for harm suffered. Plaintiffs can demonstrate, for example, the profit it would have earned for each client they claim was impacted by Defendants’ conduct. Accordingly, Plaintiffs have not sufficiently shown the balancing of harm lies in their favor.
7	24-01406442 <i>Jacobson vs. Thomas</i>	Motion to Compel Production Plaintiff Steven Jacobson’s Motion to Compel Defendant Radnet Management, Inc.’s Further Responses Plaintiff’s Requests for Production, set six, is DENIED. Plaintiff’s requests for production nos. 49 and 50 seek information related to claimed violations of Business and Professions Code section 655.8. Radent’s responses sufficiently identify the relevant information to show there was no violation and Plaintiff fails to present any evidence to show there is a need for further discovery. “It is unlawful for any person licensed under this division or under any initiative act referred to in this division to charge, bill, or otherwise solicit payment from any patient, client, customer, or third-party payer for performance of the technical component of Computerized Tomography (CT), Positron Emission Tomography (PET), or Magnetic Resonance Imaging (MRI) diagnostic imaging services if those services were not actually rendered by the licensee or a person under his or her supervision.” (Bus. & Prof. Code, § 655.8(a).) “Nothing in this section prohibits a licensee or a physician entity from billing globally for professional and technical components if both of the following conditions are met: [¶] (1) Neither the physician, or any member of his or her medical group, nor the physician entity has ordered the diagnostic imaging services. [¶] (2) The physician, or a member of his or her medical group, or the physician entity provides the professional interpretation of the diagnostic imaging service.” (Bus. & Prof. Code, § 655.8(d).) First, the imaging was ordered by William Thomas, DC, who is not affiliated with BRMG III. (Iacopino Decl., ¶ 9.) Second, BRMG III has a contract with Santa Ana Tustin Radiology Medical Group (SATR) who provides radiologists to interpret imaging studies done at BRMG III. (Iacopino Decl., ¶ 8.) Dr. Patel interpreted Plaintiff’s imaging studies pursuant to this contract between BRMG III and SATR. (Iacopino Decl., ¶ 8.) Thus, there was no violation of Section 655.8 as claimed by Plaintiff and Plaintiff fails to show there is any need to order further discovery into the matter.